
title: Criminal-Defense Checklist created: 2026-08-07

Main Checklist

- ☐ [Prospective Client Meeting \(p. 3\)](#)
- ☐ [Client Background Investigation \(p. 12\)](#)
- ☐ [Open File \(p. 28\)](#)
- ☐ [Stabilize Case \(p. 36\)](#)
- ☐ [Is the case an unindicted felony? \(p. 41\)](#)
- ☐ [Discovery and Investigation \(p. 42\)](#)
- ☐ [Mitigation \(p. 85\)](#)
- ☐ [Review Discovery \(p. 90\)](#)
- ☐ [Scientific and Technical Issues \(p. 92\)](#)
- ☐ [Motions practice \(p. 94\)](#)
- ☐ [Build a team \(p. 103\)](#)
- ☐ [Case Reassessment and Negotiation \(p. 105\)](#)
- ☐ [Plea Offers? \(p. 110\)](#)
- ☐ [Guilty Plea \(p. 111\)](#)
- ☐ [Trial \(p. 115\)](#)
- ☐ [Error Preservation \(p. 134\)](#)
- ☐ [Appeal \(p. 144\)](#)
- ☐ [Close file \(p. 145\)](#)

- ☐ [Clear Client's record. \(p. 146\)](#)
- ☐ [Prepare for disaster. \(p. 167\)](#)
- ☐ [Offense-Specific Checklists \(p. 171\)](#)

Main Checklist

Prospective Client Meeting

- ☐ Conflict Check
- ☐ Language (interpreter needed?)
- ☐ Education Level
- ☐ Special needs
- ☐ Client Information Form and Client Info in File (SSN, TDL, address at time of offense [for expunction]) (p. 6)
- ☐ **Questionnaire**

Please fill out this questionnaire as completely as possible (front and back). It is important that you answer each question fully. It is imperative that you be candid and truthful! You should answer all questions relevant to your case. If a question does not apply to your particular situation, please indicate by marking the question "N/A". Since your answers are being made to your attorney, you are assured of confidentiality and are protected by the attorney-client privilege.

Referred by: _ Why do you need an attorney? _ About You (Client/Defendant): Full Legal Name (First – Middle – Last – Maiden) _ Birth Date: _ City and State where born: _ Are you a US Citizen? Yes or No _ Social Security #: _ Driver's License #: _ Address (Street – City – County – State – Zip) _ _ _ Home phone: _ Work phone: _ Cell phone: _ Fax number: _ Email: _ Spouse's Name: _ Spouse's Telephone number: _ Emergency Contact (Name, Phone): _ _ Employer: _ Work address: _ Education Level _ Have you ever been arrested before _ For what _ Have you ever been convicted of a criminal offense or placed on deferred adjudication or probation? If so, please list offenses, dates, and place of conviction (city and state). _ Are you currently on probation or parole? _ If so, where/when and for what? _ About Your Case Date of Arrest _ Arresting Agency _ Place of Arrest _ Charge(s) _ Court _ Next Court Date _ What would the police say happened? _ Complaining Witness Information Defendant relationship to Complaining Witness _ C/W's Phone number _ Address _ Codefendants (charged and uncharged) _ Other witnesses _ Have you consulted or retained another attorney on this matter prior to coming to this office? _ If so, please state who and when _ Bonding Company _ Amount of Bond _ Guarantor of Payment (Person Responsible for Payment) Full Legal Name (First – Middle – Last – Maiden) _ Birth Date _ Relationship to Defendant _ Social Security # _ Driver's License # _ Address (Street – City – County – State – Zip) _ _ Home phone _ Work phone _ Employer _ Work address _

- ☐ Spheres of Influence Sheet
- ☐ Skills Assessment (what they like to do, are good at, etc.)
- ☐ [Discuss consequences of conviction. \(p. 8\)](#)
- ☐ Identify mental-health problems

- ☐ Identify brain issues
- ☐ Tell Client what to expect (p. 10)
- ☐ Double check with client key information. (p. 11)
- ☐ Draft agreement.
- ☐ Get client's or payor's signature.

Main Checklist

Prospective Client Meeting

Client Information Form and Client Info in File (SSN, TDL, address at time of offense [for expunction])

- ☐ Phone _____
- ☐ Address _____
- ☐ Back up contact information _____
- ☐ Other active cases: * (p. 7)
- ☐ Education status _____
- ☐ Military status _____
- ☐ Immigration status _____

Main Checklist

Prospective Client Meeting

Client Information Form and Client Info in File (SSN, TDL, address at time of offense [for expunction])

Other active cases: _ *

☐ Other cases in county? _ _____

☐ Other cases elsewhere? _ _____

☐ Other probation/parole/PPS matters? _____

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Main Checklist

Prospective Client Meeting

Discuss consequences of conviction.

- ☐ Incarceration
- ☐ Conditions of probation
- ☐ Court Costs
- ☐ Driver's License Suspension (p. 9)
- ☐ Immigration
- ☐ Sex-offender registration
- ☐ Reputation
- ☐ School
- ☐ Employment
- ☐ Licensing
- ☐ Driver's License

Main Checklist

Prospective Client Meeting

Discuss consequences of conviction.

Driver's License Suspension

- ☐ Admin Date
- ☐ 90 Days
- ☐ 180 Restricted

Main Checklist

Prospective Client Meeting

Tell Client what to expect

- ☐ Patience
- ☐ Multiple court appearances
- ☐ May or may not be waived
- ☐ How to dress for court
- ☐ Don't volunteer, don't lie to me.

Main Checklist

Prospective Client Meeting

Double check with client key information.

- ☐ Immigration
- ☐ Criminal history
- ☐ Mental health / Medical Health
- ☐ Have client sign HIPAA and FERPA
- ☐ Military history

Main Checklist

Client Background Investigation

- ☐ Medical Records (what hospitals, HIPAA) [subpoena]
- ☐ School Records (releases, transcripts, college and primary/secondary school records) [subpoena]
- ☐ Criminal History (DPS) [online database search]
- ☐ Family Background Questionnaire
- ☐ Social History (include questions on trauma) (p. 13)
- ☐ References
- ☐ Psychological Eval (include explanation about all doing it, not to be ashamed, etc.)
- ☐ Drug Tests?
- ☐ Classes?
- ☐ Community Service Hours?

Main Checklist

Client Background Investigation

Social History (include questions on trauma)

- ☐ Current Condition (p. 14)
- ☐ Observations of Client (p. 15)
- ☐ Birth, Growth & Development (p. 16)
- ☐ Relationship History (p. 17)
- ☐ School History (p. 18)
- ☐ Environmental Factors (p. 19)
- ☐ Medical & Mental Health History (p. 20)
- ☐ Military History (p. 21)
- ☐ Court History (p. 22)
- ☐ Contact with Government Agencies (p. 23)
- ☐ Employment History (p. 24)
- ☐ Religious Background/Community Activity (p. 25)
- ☐ Hobbies (p. 26)
- ☐ Friends & Family (p. 27)

Main Checklist

Client Background Investigation

Social History (include questions on trauma)

Current Condition

- ☐ How are you feeling?
- ☐ Do you have any complaints?
- ☐ How are you getting along with guards/cellmates/others?
- ☐ How are you sleeping?
- ☐ Are you getting any exercise?
- ☐ What have you had to eat?
- ☐ Did you get a shower?
- ☐ Are you making any phone calls?
- ☐ Do you have any visits?
- ☐ How do you spend the day?
- ☐ Have you seen the doctor/nurse?
- ☐ Are you taking any new medication?

Main Checklist

Client Background Investigation

Social History (include questions on trauma)

Observations of Client

- ☐ Skin (clear, acne, pale, abrasions)
- ☐ Eyes (dilated, rapid movements, dull, normal)
- ☐ Hygiene (unclean, clean, food, drool, chapped lips, feces/urine, odor)
- ☐ Appearance (disheveled, neat, unshaven, gaunt, tired)
- ☐ Mood (crying, lethargic, sad, agitated, hopeless, unpleasant, mean, irritable, clinging)
- ☐ Speech (monotonous, loud/soft, incoherent, tangential, shifting, derailment, flighty, stuck on single subject, pressured, minimal)
- ☐ Thought (delusion, hallucination, paranoia, preoccupation, extreme, confabulation, inflated sense of self)
- ☐ Feelings (fear, shame, remorse, giddy/silly, anxious, normal)
- ☐ Movement (touching, licking, rocking, drumming fingers, leg shaking, pacing, slow/fast)
- ☐ Tics (snorting, clearing throat, grimacing, head twitches, verbalization)

Main Checklist

Client Background Investigation

Social History (include questions on trauma)

Birth, Growth & Development

☐ Any known complications with mother's pregnancy (bleeding, toxemia, smoking, alcohol, drugs, physical abuse, depression, accidents, illness)

☐ Any complications at birth (premature, respiratory difficulties, jaundice, known defects)

☐ Approximate age at which developmental tasks accomplished (responsive smile, rolling over, crawling, pulling to stand, walking, speaking, self-care)

Main Checklist

Client Background Investigation

Social History (include questions on trauma)

Relationship History

- ☐ Relationship with parents (emotional support, nurturing, expressions of love, discipline, infliction of physical harm or pain, sexual abuse, sexual modeling, displays of nudity, invasions of privacy)
- ☐ Relationship with others in household
- ☐ Relationship with peers in school and neighborhood
- ☐ Police or social workers ever come to house
- ☐ Client or siblings ever run away

Main Checklist

Client Background Investigation

Social History (include questions on trauma)

School History

- ☐ Age began school
- ☐ Schools attended (dates, addresses, reason for changing schools)
- ☐ Progress from one grade to next
- ☐ Placement (advanced, special education)
- ☐ Behavioral difficulties
- ☐ Lateness, attendance
- ☐ Performance
- ☐ Significant teachers/coaches
- ☐ Parental involvement in school
- ☐ Highest grade completed
- ☐ Extracurricular activities, clubs, sports

Main Checklist

Client Background Investigation

Social History (include questions on trauma)

Environmental Factors

- ☐ All addresses where client lived
- ☐ Name, age, current address of all people with whom client lived
- ☐ Physical conditions in which client grew up (type of neighborhood, housing conditions, availability of heat, number of rooms, number of people in residence)
- ☐ Exposure to toxins (smoking, lead, folk remedies, solvents, glue, industrial area, agricultural area)
- ☐ Client, family, or caretaker ever in an occupation at risk for neurotoxic exposure (agricultural, chemical, pharmaceutical, degreaser, dry cleaner, dental hygienist, electronics, plastics, painter, rayon, steel, transportation, foundry, scrap metal)

Main Checklist

Client Background Investigation

Social History (include questions on trauma)

Medical & Mental Health History

- ☐ Kind of health care child/family received (ER, doctor, clinic)
- ☐ Injuries, accidents, illnesses, including during childhood
- ☐ Head trauma (blows, car accidents, falls, sports injuries)
- ☐ Fevers, headaches
- ☐ MRI, CAT scan PET, EEG, x-ray of head, neuropsych or psych testing
- ☐ Hospitalizations
- ☐ Emergency room visits
- ☐ Alcohol/drug use
- ☐ Alcohol/drug treatment (where, when)
- ☐ Mental health evaluations, court-related or otherwise
- ☐ Mental health treatment (where, when, who treated)
- ☐ Medications

Main Checklist

Client Background Investigation

Social History (include questions on trauma)

Military History

- ☐ Ever rejected for military service
- ☐ Name, branch, and dates of service
- ☐ Highest rank obtained & rank at discharge
- ☐ Type of discharge
- ☐ Significant military experiences
- ☐ Vaccinations, overseas experience, special training
- ☐ Veteran's care, post-military trauma or illness

Main Checklist

Client Background Investigation

Social History (include questions on trauma)

Court History

- ☐ Prior juvenile or criminal charges (jurisdiction, disposition, name of attorney, date of offense, date of arrest, character of offense, length and place of incarceration or juvenile placement, name of parole/probation officer)
- ☐ Prison and/or probation record (disciplinary record, compliance with rules, ever granted privileges, work history, participation in programs, ever evaluated or treated, medications administered, noteworthy relationships)
- ☐ Plaintiff or defendant in civil case
- ☐ Witness in any court proceeding
- ☐ Filed bankruptcy
- ☐ Child support proceedings
- ☐ Paternity proceedings

Main Checklist

Client Background Investigation

Social History (include questions on trauma)

Contact with Government Agencies

- ☐ Arrests, other police contact
- ☐ Benefits (food stamps, disability, unemployment, social security)
- ☐ Child welfare
- ☐ Veteran's Administration
- ☐ Immigration (USCIS/ICE/DHS)

Main Checklist

Client Background Investigation

Social History (include questions on trauma)

Employment History

- ☐ Employment record (name, address, supervisor, dates of employment, reasons for leaving)
- ☐ Problems with employers/co-workers
- ☐ Lengthy periods of unemployment (why, collect benefits)
- ☐ Workers' compensation claims

Main Checklist

Client Background Investigation

Social History (include questions on trauma)

Religious Background/Community Activity

- ☐ Attendance as child/adult (where, name of church, personnel, activities)
- ☐ Other community groups/service

Main Checklist

Client Background Investigation

Social History (include questions on trauma)

Hobbies

- ☐ What client likes to do in spare time

Main Checklist

Client Background Investigation

Social History (include questions on trauma)

Friends & Family

- ☐ Name, age, address of parents, step-parents, grandparents, siblings, and other relatives
- ☐ Name, age, address of friends or mentors
- ☐ Nature and quality of relationships with friends
- ☐ Name, age, address of boyfriends/girlfriends, current & former spouses
- ☐ Nature and quality of relationships with "significant others"
- ☐ Family/caretaker ever diagnosed (or treated or suspected) with mental illness, other illness, injury
- ☐ Family/caretaker have seizures, memory loss, uncontrolled temper/rages, "crazy behavior," signs of retardation, etc.
- ☐ Use of drugs/alcohol by family member/caretaker
- ☐ Criminal records of family/friends
- ☐ Court involvement of family/friends
- ☐ Family/caretaker receive government benefits, have contact with child protective services or other social service agency

Main Checklist

Open File

- ☐ If hourly: Timesheet in file.
- ☐ Include Criminal Pleadings (p. 29)
- ☐ Pull all applicable statutes
- ☐ Codefendants?
- ☐ Charges the DA missed?
- ☐ Determine all court dates and list
- ☐ Place court dates into calendar (p. 30)
- ☐ Pull sample jury charge
- ☐ Notice of Appearance / Appearance of counsel / Motion to Substitute
- ☐ Request discovery, notice, and disclosure. (p. 31)
- ☐ Is client noncitizen? (p. 32)
- ☐ Initial Legal Review (p. 33)
- ☐ Special subpoenas needed? (p. 35)
- ☐ Start file memo.

Main Checklist

Open File

Include Criminal Pleadings

- ☐ Criminal Information or Indictment
- ☐ Probable Cause – Affidavit / Hearing

Main Checklist

Open File

Place court dates into calendar

☐ Next appearance

☐ Other deadlines

Main Checklist

Open File

Request discovery, notice, and disclosure.

- ☐ Written art. 39.14 discovery request filed and copy in file
- ☐ Requests for notice: 404(b), 609(f), 37.07 sec. 3(g), 38.37 (as applicable)
- ☐ Log what was produced and when; the exculpatory/impeachment/mitigation duty (39.14(h)) runs without any request, and supplemental disclosure is required whenever more surfaces (39.14(k))
- ☐ Client access to discovery is view-only (39.14(f)): no copies except the client's own statement, identifiers redacted before viewing, and the client is never the attorney's agent
- ☐ Calendar a supplemental-discovery check before every setting

Main Checklist

Open File

Is client noncitizen?

- ☐ Consult with immigration lawyer
- ☐ Counsel client regarding immigration

Main Checklist

Open File

Initial Legal Review

- ☐ Jurisdiction correct?
- ☐ Statute of limitations?
- ☐ Speedy trial issues?
- ☐ Motion to suppress?
- ☐ Challenges to statute?
- ☐ Do any defenses need experts/notices/motions?
- ☐ Can client aid and assist in own defense
- ☐ Initial sentencing assessment (p. 34)

Main Checklist

Open File

Initial Legal Review

Initial sentencing assessment

- ☐ Max/Min penalties
- ☐ Consecutive/concurrent
- ☐ Same/Separate criminal episodes?
- ☐ Max sentences/fines?
- ☐ Diversion programs available?

Main Checklist

Open File

Special subpoenas needed?

☐ GPS data

☐ Medical records

Main Checklist

Stabilize Case

- ☐ Instruct Client: (p. 37)
- ☐ Bail (p. 38)
- ☐ Magistrations review (p. 40)

Main Checklist

Stabilize Case

Instruct Client:

- ☐ Do not talk to anyone about case.
- ☐ What to do if police call.
- ☐ Social media behavior.

Main Checklist

Stabilize Case

Bail

- ☐ Bail set? Amount and conditions
- ☐ Review bond conditions (interlock, GPS, no-contact, travel); move to modify onerous conditions
- ☐ If no bail, why not? Check Constitution and statute for bases. (p. 39)
- ☐ If necessary, habeas to reduce bond.
- ☐ Client in custody and State not ready: calendar the art. 17.151 release/bond-reduction deadline (90 days felony; 30 days misdemeanor punishable by more than 180 days; 15 days by 180 days or less; 5 days fine-only)
- ☐ Connect family with bonding company.

Main Checklist

Stabilize Case

Bail

If no bail, why not? Check Constitution and statute for bases.

☐ Art. I, sec. 11-d (added Nov. 2025): for the listed violent/sexual offenses the State can seek mandatory denial. Demand the hearing and counsel; make the State elect and prove its theory; insist on written findings; build the record on conditions short of detention

Main Checklist

Stabilize Case

Magistration review

- ☐ Art. 15.17 warnings given? Anything client said recorded?
- ☐ Mental-health/IDD screening ordered (art. 16.22)? Obtain any assessment

Main Checklist

Is the case an unindicted felony?

- ☐ Pre-indictment negotiation
- ☐ Contact Prosecutor about grand jury packet- get it in writing
- ☐ Consider private polygraph (privileged; disclose to the State only if favorable)
- ☐ Write a grand-jury letter
- ☐ Send grand-jury letter

Main Checklist

Discovery and Investigation

- ☐ Witness Assessment (p. 43)
- ☐ Scene and Timeline Investigation (p. 45)
- ☐ Electronic and Communications Evidence (p. 47)
- ☐ Documentary Evidence - General (p. 52)
- ☐ Documentary Evidence - Case-Specific Investigations (p. 57)
- ☐ Specialized Discovery Requests (p. 60)
- ☐ Large Data Assessment (Complex Cases) (p. 78)
- ☐ Investigation - Additional Considerations (p. 80)

Main Checklist

Discovery and Investigation

Witness Assessment

- ☐ Make witness list from Client, family/neighbors, and State's file
- ☐ Collect statements from witnesses
- ☐ Any additional witnesses?
- ☐ Impeachment material (p. 44)
- ☐ Interview all witnesses
- ☐ Social media for Client / Witnesses (Facebook, Instagram, X/Twitter, TikTok, Snapchat, LinkedIn); preserve posts with screenshots and URLs
- ☐ Compile witness list for guilt
- ☐ Compile witness list for punishment

Main Checklist

Discovery and Investigation

Witness Assessment

Impeachment material

- ☐ Criminal history
- ☐ Other statements

Main Checklist

Discovery and Investigation

Scene and Timeline Investigation

- ☐ Visit Scene
- ☐ (Homicide Cases) Visit Medical Examiner's office
- ☐ Visit scene with investigator
- ☐ Scene Photos / Scene Visit / Google Earth Photo of scene
- ☐ Scene Reconstruction
- ☐ Make a timeline of the incident (p. 46)

Main Checklist

Discovery and Investigation

Scene and Timeline Investigation

Make a timeline of the incident

- ☐ Movements/Actions possible in the timeframe?
- ☐ Match the witness statements?
- ☐ Any witnesses that would take exception to the timeline?

Main Checklist

Discovery and Investigation

Electronic and Communications Evidence

- ☐ Are there cell phones involved? (p. 48)
- ☐ Get cops' cell numbers
- ☐ Are police location and travel important? (p. 49)
- ☐ ALPR/license-plate-reader and city camera data near scene?
- ☐ Doorbell and business security cameras: canvass early and send preservation letters (retention periods are short)
- ☐ Client's phone and cloud accounts: preserve; image before any turnover decision
- ☐ Jail calls are recorded: warn client, and request the State's collection of client's calls in discovery
- ☐ 911 / dispatch recordings (p. 50)
- ☐ Dispatch tapes, MDT printouts, AVL/GPS data from patrol car, and all video and audio (including any metadata of when photos/video/audio done) (p. 51)
- ☐ Social media
- ☐ News articles

Main Checklist

Discovery and Investigation

Electronic and Communications Evidence

Are there cell phones involved?

- ☐ Send cell phone company letter to preserve texts and GPS location.
- ☐ Subpoena cell phone records

Main Checklist

Discovery and Investigation

Electronic and Communications Evidence

Are police location and travel important?

- ☐ Get patrol car GPS records.
- ☐ Get patrol car dashcam / bwc that includes metadata.
- ☐ Map police coordinates to Google map for visualization.

Main Checklist

Discovery and Investigation

Electronic and Communications Evidence

911 / dispatch recordings

☐ Subpoena to:

☐ If made to County: Traci Mullins, records custodian, 1301 Franklin, Houston 77002. Include cause number, offense report #, address, and date, and even phone number that called 911 if you have it

☐ If made to City of Houston: HEC, Custodian of Records, 5320 N. Shepherd, Room 1022. Houston, Texas 77091. Contact Joe.Laud@CityOfHouston.net if there are any problems (e.g., runaround). Include cause number, offense report #, address, and date, and even phone number that called 911 if you have it

Main Checklist

Discovery and Investigation

Electronic and Communications Evidence

Dispatch tapes, MDT printouts, AVL/GPS data from patrol car, and all video and audio (including any metadata of when photos/video/audio done)

☐ Subpoena to:

☐ HPD: HPD, Wanda O' Bryant, 1200 Travis, Houston, TX 77002. Specify unit, incident number, and time frame (she will not accept faxes). Voice: 713-308-8502

☐ HCSD: Dalora Miller. Custodian of Records/Legal Department. 1200 Baker, Houston, TX 77002

Main Checklist

Discovery and Investigation

Documentary Evidence - General

- ☐ Priors? (p. 53)
- ☐ Are there medical records involved?
- ☐ Identify healthcare providers. (p. 54)
- ☐ TCOLE records (formerly TCLEOSE) Requested
- ☐ TCOLE records Received
- ☐ MDTs Requested
- ☐ MDTs Received
- ☐ PIA Requests (p. 55)
- ☐ Do you have all police reports?
- ☐ Probable cause affidavits
- ☐ View evidence in custody. (p. 56)
- ☐ Invasive-recording or forensic-exam images in the production? Protective orders required; copies are returned or destroyed at disposition (arts. 39.152, 39.153, eff. 2025)
- ☐ Lab Reports
- ☐ DNA Serology Reports
- ☐ Subpoenas
- ☐ Jail documents / pretrial reports
- ☐ Any follow-up police reports

Main Checklist

Discovery and Investigation

Documentary Evidence - General **Priors?**

- ☐ Investigate priors.
- ☐ Prior J&Ss Requested
- ☐ Prior J&Ss Received
- ☐ Compare Priors

Main Checklist

Discovery and Investigation

Documentary Evidence - General

Identify healthcare providers.

- ☐ Get HIPAA release forms from providers.
- ☐ HIPAA release signed by client.
- ☐ HIPAA motion filed on CW.
- ☐ Medical Records Requested
- ☐ Medical records subpoenaed.
- ☐ Medical Records Received

Main Checklist

Discovery and Investigation

Documentary Evidence - General

PIA Requests

- ☐ Jail records
- ☐ School records
- ☐ Juvenile /TDCJ records

Main Checklist

Discovery and Investigation

Documentary Evidence - General

View evidence in custody.

- ☐ Request court order.
- ☐ Get court order.
- ☐ Communicate court order to agency.

Main Checklist

Discovery and Investigation

Documentary Evidence - Case-Specific Investigations

☐ Is it a drug case? (p. 58)

☐ Is it a DWI case? (p. 59)

Main Checklist

Discovery and Investigation

Documentary Evidence - Case-Specific Investigations

Is it a drug case?

☐ Drug test client

Main Checklist

Discovery and Investigation

Documentary Evidence - Case-Specific Investigations

Is it a DWI case?

- ☐ ALR Checklist
- ☐ Video Requested
- ☐ Video Received
- ☐ 911 Requested
- ☐ 911 Received

Main Checklist

Discovery and Investigation

Specialized Discovery Requests

- ☐ Police personnel/civil service files of cops, including sustained complaints (3x5), as well as payroll records: (p. 62)
- ☐ Policies and procedures (esp for towing, informants, DWI, canine searches, etc): (p. 63)
- ☐ Breath test/Blood test (court has standard orders that are in our DWI pleadings folder): (p. 64)
- ☐ Accident reports (p. 65)
- ☐ Jail arrest record (HPD city jail) (p. 66)
- ☐ Crime lab documents for tests (p. 67)
- ☐ Laboratory Accreditation documentation – certificate of accreditation establishes that our procedures are valid and accepted by the forensic community. Demonstrates with compliance with ISO 17025 standards for testing laboratories and the also the fact that our practices, records and procedures are routinely reviewed and audited (both internally and externally).
- ☐ Analyst's statement of qualifications (same as a CV).
- ☐ Specifically for Blood Alcohol and Toxicology, the following should be requested: (p. 69)
- ☐ NOTE: Youtube videos and testimony of Justin McShane can explain limitations of GCMS. He is also available to testify as an expert.
- ☐ For DNA: A copy of all reports, laboratory notes, sketches, and photographs from the analytical AND the database laboratories (if a cold hit is involved), including but not limited to the following: (p. 70)
- ☐ Calls for service (p. 71)

- ☐ Mugshots/Booking Photo(HCSD) (p. 72)
- ☐ Jail cards (HCSD) (p. 73)
- ☐ Pen Packets (p. 74)
- ☐ Informant files, including criminal record, payment records, leniency, if he has been deactivated, if he has been untruthful, etc. (court may need to inspect in camera, in which case entire file needs to be sealed as exhibit), including running informant on Facebook and other social networks. (p. 75)
- ☐ CPS Records (p. 76)
- ☐ Offense reports (p. 77)

Main Checklist

Discovery and Investigation

Specialized Discovery Requests

Police personnel/civil service files of cops, including sustained complaints (3x5), as well as payroll records:

☐ Public Information Act request to:

☐ HPD: Roland Bienvenu, HR Dept 611 Walker, 4th Floor, Houston, TX 77002,
Roland.Bienvenu@CityOfHouston.net

☐ HCSD: Dalora Miller, Custodian of Records/Legal Department, 1200 Baker,
Houston, TX 77002

☐ DPS: Human Resources Department ATTN: Norma Cortez, 5805 N. Lamar Blvd.,
Bldg. C, Austin, Texas 78752-0251, Voice: (512) 424-2393, Fax (512) 424-2338

Main Checklist

Discovery and Investigation

Specialized Discovery Requests

Policies and procedures (esp for towing, informants, DWI, canine searches, etc):

☐ Subpoena to:

☐ HPD: HPD, Wanda O' Bryant 1200 Travis, Houston, TX 77002. Specify unit, incident number, and time frame (she will not accept faxes). Voice: 713-308-8502

☐ HCSD: Dalora Miller, Custodian of Records/Legal Department 1200 Baker, Houston, TX 77002

Main Checklist

Discovery and Investigation

Specialized Discovery Requests

Breath test/Blood test (court has standard orders that are in our DWI pleadings folder):

☐ Fax blood test court order to:

☐ HPD: Theresa Clark at (713) 308-2645 (will accept via fax and call to pick up).
Voice: (713) 308-2600

☐ Fax breath test order to:

☐ HPD: DPS handles all HPD breath test records, so send to DPS, ATTN: Lee Nanne Spino at fax (281) 517-1427. Voice: (281) 517-1426

Main Checklist

Discovery and Investigation

Specialized Discovery Requests

Accident reports

☐ Records Division, 713-808-8585. Can be purchased online 5-8 days after accident at: www.vectrareports.com/Index.aspx. Require two of these three: (1) date of accident, (2) location of accident, and (3) drivers involved

Main Checklist

Discovery and Investigation

Specialized Discovery Requests

Jail arrest record (HPD city jail)

☐ Open Records Act to HPD, Public Affairs Division, 1200 Travis, Houston, TX
77002

☐ Specify date of arrest, full name, DoB, TDL and/or SSN of person, and any offense
report number. Fax: 713-308-3260

Main Checklist

Discovery and Investigation

Specialized Discovery Requests

Crime lab documents for tests

☐ Subpoena to relevant lab:

☐ NOTE: Generally, the items subpoenaed at a minimum should be: (p. 68)

Main Checklist

Discovery and Investigation

Specialized Discovery Requests

Crime lab documents for tests

NOTE: Generally, the items subpoenaed at a minimum should be:

- ☐ Case folder documents
- ☐ a.Report
- ☐ b.Chain of custody record
- ☐ c.Evidence receipt and disposition records
- ☐ d.Submission/request information (internal and external)
- ☐ e.Examination Documentation: bench notes, data, observations, photographs, all records pertaining to the observations, analysis, interpretations, and opinions of evidence
- ☐ f.Case specific records of calibrations and controls
- ☐ g.Communication Logs
- ☐ h.Documentation of applicable verification, technical and administrative review of the case
- ☐ i.Relevant case-specific corrective actions and/or deviations

Main Checklist

Discovery and Investigation

Specialized Discovery Requests

Specifically for Blood Alcohol and Toxicology, the following should be requested:

- ☐ Batch archive (general information that applies to all samples run in a particular batch)
- ☐ a. Calibration documents
- ☐ b. Worklist for batch (shows all specimen notes, QC of the pipettes used, all reagents and solutions used)
- ☐ c. Batch summary sheet (results of analyses in the batch – all controls for Toxicology and all controls and every case sample for Blood Alcohol)
- ☐ d. Chromatograms of every control in the batch
- ☐ e. Documentation of applicable technical review of the batch

Main Checklist

Discovery and Investigation

Specialized Discovery Requests

For DNA: A copy of all reports, laboratory notes, sketches, and photographs from the analytical AND the database laboratories (if a cold hit is involved), including but not limited to the following:

- ☐ 1. Evidence collection, processing and chain of custody documentation pertaining to evidence items analyzed.
- ☐ 2. Photographs and descriptions of evidence items analyzed
- ☐ 3. Laboratory notes related to the screening of evidence items for biological fluids
- ☐ 4. DNA extraction worksheets, quantitation worksheets, and laboratory notes
- ☐ 5. Genescan/Genotyper or Genemapper electropherograms from Profiler Plus, Cofiler, Identifiler, Y STR, Powerplex 16, or any other STR DNA typing analysis
- ☐ 6. Electronic data on CD-ROM including, but not limited to, raw data files, Genescan/Genotyper data, or Genemapper data.
- ☐ 7. Genetic marker database information used to calculate profile frequencies
- ☐ 8. A copy of the confirming cold hit case file from the state CODIS laboratory, if a cold hit is involved
- ☐ 9. Police reports and evidence collection documentation from the investigating agency

Main Checklist

Discovery and Investigation

Specialized Discovery Requests

Calls for service

- ☐ Open Records Act to:
- ☐ HPD: HPD Public Affairs Division, 1200 Travis, Houston, TX 77002
- ☐ HCSD: Dalora Miller, Custodian of Records/Legal Department, 1200 Baker, Houston, TX 77002
- ☐ Specify address and time frame

Main Checklist

Discovery and Investigation

Specialized Discovery Requests

Mugshots/Booking Photo(HCSD)

☐ Open Records Act to:

☐ HCSD: Dalora Miller, Custodian of Records/Legal Department, 1200 Baker,
Houston, TX 77002

☐ Include arrest date (or month/year) and arrestee

Main Checklist

Discovery and Investigation

Specialized Discovery Requests

Jail cards (HCSD)

- ☐ Open Records Act request to:
- ☐ HCSD: Dalora Miller, Custodian of Records/Legal Department, 1200 Baker, Houston, TX 77002
- ☐ Include date (or month/year) and arrestee

Main Checklist

Discovery and Investigation

Specialized Discovery Requests

Pen Packets

☐ Open Records Act request to:

☐ TDCJ Classification and Records Headquarters in Huntsville. Requests may be sent by internet email (penpacket-AT-tdcj.state.tx.us), fax (936/437-6227) or regular mail (P.O. Box 99, Huntsville, Texas 77342). However, if the request is for a state jail offender, and the requestor knows which facility that state jail offender is assigned to, the request may be sent directly to the state jail, attention Unit Warden or Classification Chief. State jail addresses and phone numbers can be obtained from the unit directory on the TDCJ website (www.tdcj.state.tx.us). Every effort will be made to process the request within seven calendar days. If the pen packet is not received in this time period, or if the request is a "rush order", you may contact Rachel Williams, TDCJ Classification and Records, at 936/437-8696 or Rachel.williams-AT-tdcj.state.tx.us."

Main Checklist

Discovery and Investigation

Specialized Discovery Requests

Informant files, including criminal record, payment records, leniency, if he has been deactivated, if he has been untruthful, etc. (court may need to inspect in camera, in which case entire file needs to be sealed as exhibit), including running informant on Facebook and other social networks.

☐ Subpoena to:

☐ HPD: HPD, Wanda O' Bryant, 1200 Travis, Houston, TX 77002. Specify unit, incident number, and time frame (she will not accept faxes). Voice: 713-308-8502

☐ HCSD: Dalora Miller. Custodian of Records/Legal Department. 1200 Baker, Houston, TX 77002

Main Checklist

Discovery and Investigation

Specialized Discovery Requests

CPS Records

☐ NOTE: Can subpoena but invariably CPS will file a motion to quash and you will in turn need to file a motion with the trial court for an in camera inspection; thus, consider just first filing a motion for disclosure and in camera inspection to avoid hassle of a subpoena.

Main Checklist

Discovery and Investigation

Specialized Discovery Requests

Offense reports

☐ Open Records Act request to:

☐ Harris County (only felonies, not misdemeanors, retained): Email to Brian Rose at
with defendant's name, case number, and court.

Main Checklist

Discovery and Investigation

Large Data Assessment (Complex Cases)

- ☐ Is there any way to estimate the total volume of the discovery production even though some of it may come later?
- ☐ Will we be able to access all the data?
- ☐ Is any of the data encrypted?
- ☐ Are there specific types of documents that will be irrelevant to our case? (i.e. pictures, executable files, junk emails, etc.)
- ☐ Are there specific types of documents that will be very important to our case? (i.e. emails authored by a particular person, documents created during a specific time period, specific document types such as bank records, etc.)
- ☐ Are there both paper documents that have been scanned and native electronic files?
- ☐ Should we objectively code the scanned documents so that they can be integrated into the native file data set for purposes of searching and organization?
- ☐ Will there continue to be rolling discovery productions?
- ☐ Do we need to look at the entire production?
- ☐ Is there information that the government has not provided that needs to explicitly requested?
- ☐ In what format or formats do you want to request this information?
- ☐ Is there information that is not under the government's control that needs to be obtained from 3rd party sources?
- ☐ In what format or formats is that information currently maintained?

- ☐ Can we get the third party information in a forensically sound manner so as to ensure proper chain of custody?
- ☐ Will the documents need to be shared among other counsel?
- ☐ Does the trial team already have an Evidence Review Platform in their office that could handle the amount and variety of discovery involved?
- ☐ What is the timeline for completing the review?

Main Checklist

Discovery and Investigation

Investigation - Additional Considerations

- ☐ Subpoenas to defense witnesses
- ☐ Officer Info. (for all officers involved): (p. 81)
- ☐ Complaining Witness Info.: (p. 82)
- ☐ Restitution? (p. 83)
- ☐ Investigator to prepare: (p. 84)
- ☐ Make investigative memo to file
- ☐ Memo to file on investigation/themes
- ☐ If applicable, consider Motions for Continuance for more investigation or additional funds for experts
- ☐ Review what you are unable to get for trial for Motion for New Trial/Punishment or Guilt

Main Checklist

Discovery and Investigation

Investigation - Additional Considerations

Officer Info. (for all officers involved):

- ☐ TCOLE Records
- ☐ Personnel files (including complaints) [subpoena]
- ☐ IAD investigations and results [subpoena]
- ☐ Lawsuits filed against [?]

Main Checklist

Discovery and Investigation

Investigation - Additional Considerations

Complaining Witness Info.:

- ☐ Criminal History (DPS) [online database search]
- ☐ Affidavit of Non-Prosecution?

Main Checklist

Discovery and Investigation

Investigation - Additional Considerations

Restitution?

- ☐ Determine amount asked for
- ☐ Outside expert needed to value property?
- ☐ Civil compromise appropriate?

Main Checklist

Discovery and Investigation

Investigation - Additional Considerations

Investigator to prepare:

- ☐ Exhibits (maps, photos)
- ☐ Reports

Main Checklist

Mitigation

- ☐ Make timelines of client's life
- ☐ Confront family with records
- ☐ Confront client with records
- ☐ Contact family members/neighbors
- ☐ Hire or request mitigation specialist (Ake motion if needed)
- ☐ Identify mitigation themes/circumstances (p. 85)
- ☐ Client employment history
- ☐ Treatment amenability
- ☐ Client have \$ up front for restitution?
- ☐ Sign mitigation releases (p. 86)
- ☐ Conduct mitigation interviews (p. 87)
- ☐ Gather mitigation documents (p. 88)
- ☐ Develop detailed family tree
- ☐ Expert reports (psychological, medical, drug/alcohol evaluation)
- ☐ Get your experts and investigators their \$
- ☐ Prepare mitigation presentation materials (p. 89)

Main Checklist

Mitigation

Sign mitigation releases

- ☐ HIPAA release (general)
- ☐ FERPA release for educational background
- ☐ HIPAA release specific to MHMR
- ☐ If military veteran: VA release, military records release

Main Checklist

Mitigation

Conduct mitigation interviews

- ☐ Build relationship and trust with interviewees
- ☐ Ask open-ended questions
- ☐ LISTEN (most important)
- ☐ Do not judge

Main Checklist

Mitigation

Gather mitigation documents

- ☐ Medical history
- ☐ Family tree with contacts
- ☐ Mental health history
- ☐ Education history
- ☐ Employment history
- ☐ Military history
- ☐ Criminal history
- ☐ Full investigation into the crime itself

Main Checklist

Mitigation

Prepare mitigation presentation materials

- ☐ Letters of reference
- ☐ Job information
- ☐ Financial documentation

Main Checklist

Review Discovery

- ☐ List possible witnesses and their connections.
- ☐ Client info on witnesses
- ☐ Review Video
- ☐ Transcribe audio
- ☐ Location awareness (p. 91)
- ☐ Update file memo.

Main Checklist

Review Discovery

Location awareness

- ☐ Google Map
- ☐ Google Street View
- ☐ Weather Conditions
- ☐ Lighting

Main Checklist

Scientific and Technical Issues

- ☐ DNA mixture case? CPI evidence issues? Is it single source DNA evidence? (p. 93)
- ☐ Other evidence which needs to be tested?
- ☐ Any witness ever hypnotized by law enforcement? Statements derived from investigative hypnosis are inadmissible (art. 38.24, eff. 2023)
- ☐ Drug / Alcohol Reports
- ☐ Blood Analysis Reports
- ☐ Fingerprint Analysis Reports
- ☐ Gunshot Residue Analysis Reports

Main Checklist

Scientific and Technical Issues

DNA mixture case? CPI evidence issues? Is it single source DNA evidence?

- ☐ Call the lab analyst, ensure there are no other supplemental reports, that you have all reports, that there are no calculations or other reports pending
- ☐ Discuss lab report data – ask analyst to pin down their interpretation of results

Main Checklist

Motions practice

- ☐ Early motions: (p. 95)
- ☐ Routine pretrial motions: (p. 97)
- ☐ More pretrial motions: (p. 98)
- ☐ Multiple defendants: (p. 100)
- ☐ Trial motions: (p. 101)
- ☐ ASAC MOTIONS: (p. 102)
- ☐ 28.01 hearing set? Calendar motion-filing deadline.

Main Checklist

Motions practice

Early motions:

- ☐ Request for discovery, 39.14
- ☐ Ake motions (p. 96)
- ☐ Motion to inspect things in custody of state, e.g. guns
- ☐ Motion to inspect scene controlled by state, e.g. jail if crime happened there

Main Checklist

Motions practice

Early motions:

Ake motions

☐ Investigators

☐ Experts

☐ Cocounsel

Main Checklist

Motions practice

Routine pretrial motions:

- ☐ Election on punishment
- ☐ Application for community supervision
- ☐ Motion to disclose criminal records of state witnesses
- ☐ Motion for a list of witnesses
- ☐ Motion to rely on State's subpoenas
- ☐ Motion for leave to file additional motions
- ☐ Request for notice, 404, 609, 37.07 as applicable
- ☐ Motion for grand jury testimony (if entitled)
- ☐ Motion to discover identity of informant

Main Checklist

Motions practice

More pretrial motions:

☐ Motion for speedy trial; renew it, and build the record on delay, reasons, assertion, and prejudice (preservation in the trial court is required). Texas has had no statutory speedy-trial clock since the Speedy Trial Act was held void in 1987; the constitutional Barker analysis is the whole claim

☐ Motion for no solitary confinement (show particularized need)

☐ Motion to suppress

☐ Motion to set aside ("quash") indictment (p. 99)

☐ Giglio

☐ Notice of insanity defense

Main Checklist

Motions practice

More pretrial motions:

Motion to set aside ("quash") indictment

- ☐ Does charge track statute?
- ☐ Are separate offenses in separate counts or indictments?
- ☐ All notice of

Main Checklist

Motions practice

Multiple defendants:

- ☐ Bruton motion
- ☐ Motion to sever
- ☐ motion in limine, guilty plea of co-defendant
- ☐ Motion to adopt objections, motions, requests of co-defendants

Main Checklist

Motions practice

Trial motions:

- ☐ Subpoena applications.
- ☐ Notices of business records.
- ☐ Motion in Limine.
- ☐ Trial brief.
- ☐ Juror questionnaire.
- ☐ Punishment election.
- ☐ Application for probation.
- ☐ Theus motion
- ☐ Motion to suppress
- ☐ Notice of defense expert
- ☐ Motion to limit argument

Main Checklist

Motions practice

ASAC MOTIONS:

- ☐ Motion to view CAC video
- ☐ Motion to have client view CAC video
- ☐ Request for notice, 38.37
- ☐ Request for hearing, 38.37
- ☐ Motion for outcry statement

Main Checklist

Build a team

- ☐ Cocounsel
- ☐ Law lawyer (legal-research, motions, and charge specialist)
- ☐ Investigators
- ☐ Experts - General (p. 104)

Main Checklist

Build a team

Experts - General

- ☐ Request consulting expert
- ☐ Forensic expert (test/weigh drugs)
- ☐ Psychologist
- ☐ Medical doctor
- ☐ Psychopharmacologist (drug interactions)
- ☐ Expert to value property or damage
- ☐ Sentencing mitigation – drug and alcohol evaluation and amenability to treatment
- ☐ Eyewitness identification expert

Main Checklist

Case Reassessment and Negotiation

- ☐ Reassess Case (p. 106)
- ☐ Reassess Trial Readiness (p. 107)
- ☐ Negotiations / Alternate Resolutions (p. 108)
- ☐ Has client contemplated collateral consequences: (p. 109)

Main Checklist

Case Reassessment and Negotiation

Reassess Case

- ☐ Review options with client
- ☐ Any other material needed?
- ☐ Client understand rights and trial options?
- ☐ Discussion re Bench v. Jury
- ☐ Discussion re client testifying

Main Checklist

Case Reassessment and Negotiation

Reassess Trial Readiness

- ☐ What facts are coming into trial
- ☐ Facts beyond change
- ☐ What evidence can be suppressed/ excluded
- ☐ Finalize motions in limine/ motions to suppress
- ☐ What exhibits will be in trial
- ☐ What witnesses will actually appear
- ☐ Client testifying?

Main Checklist

Case Reassessment and Negotiation

Negotiations / Alternate Resolutions

- ☐ DA have witness statements or discovery you gathered?
- ☐ Requested offer?
- ☐ Reviewed offer with client?
- ☐ Counteroffers?
- ☐ Civil compromise possible/allowed?

Main Checklist

Case Reassessment and Negotiation

Has client contemplated collateral consequences:

- ☐ Immigration
- ☐ Emigration
- ☐ Expungements
- ☐ Other collateral consequences

Main Checklist

Plea Offers?

- ☐ Convey offer to client.
- ☐ Answer client's concerns.
- ☐ Get client's response.
- ☐ Update file memo.

Main Checklist

Guilty Plea

☐ Plea Preparation (p. 112)

☐ Plea Agreement (p. 114)

Main Checklist

Guilty Plea

Plea Preparation

- ☐ All discovery received and reviewed before plea; discovery acknowledgment on the record (art. 39.14)
- ☐ Immigration consequences re-verified before plea (Padilla)
- ☐ Deadly-weapon finding? Explain effect on parole eligibility and probation
- ☐ Sex-offender registration (ch. 62): determine applicability and duration before any plea
- ☐ Confirm plea papers match the deal: waivers, appeal rights, conditions, affirmative findings
- ☐ Got an offer on each count?
- ☐ Reviewed paperwork with client?
- ☐ Filled out appeal form
- ☐ Sentencing mitigation materials (p. 113)

Main Checklist

Guilty Plea

Plea Preparation

Sentencing mitigation materials

☐ Letters of reference

☐ Job information

☐ Financial

Main Checklist

Guilty Plea

Plea Agreement

☐ Translate

☐ Explain

Main Checklist

Trial

☐ Trial Preparation (p. 116)

☐ Trial Execution (p. 126)

Main Checklist

Trial

Trial Preparation

- ☐ Plan for Trial (p. 117)
- ☐ Trial Materials Preparation (p. 119)
- ☐ Statements of Defendant (p. 120)
- ☐ State's Case (p. 123)
- ☐ Punishment Phase Preparation (p. 124)
- ☐ State's Evidence Punishment Phase (p. 125)

Main Checklist

Trial

Trial Preparation

Plan for Trial

- ☐ Facts of Case
- ☐ Defensive Theme of Case
- ☐ Defense Pre-Trial Motions and Pleadings
- ☐ State Pre-Trial Motions and Pleadings
- ☐ Issues to be covered in Voir Dire
- ☐ Visual aids for voir dire
- ☐ Issues to be covered in Opening Statement
- ☐ Issues to be emphasized throughout and during trial
- ☐ Requested Instructions for Charge in Guilt/Innocence Phase
- ☐ Requested Instructions for Charge in Punishment Phase
- ☐ Matters of concern (those things to worry about)
- ☐ Evidence for Defensive Theme
- ☐ Witnesses (Witness – Issues)
- ☐ Documentary Evidence
- ☐ Defensive Issues To Be Brought out on Cross Examination of State's Witnesses (Witness ____)
- ☐ Documentary Evidence in support of Defensive Position (Document – Witness)
- ☐ Attack Search (yes/no)

- ☐ Search Issues (Issue – Witnesses)
- ☐ State's Documents (Document/Photographs/Diagrams or Charts – Objections)
- ☐ Co-Defendants Issues and Cross examination
- ☐ Points of Law to Research

Main Checklist

Trial

Trial Preparation

Trial Materials Preparation

- ☐ Finalize themes and exhibit list
- ☐ Jury Instructions
- ☐ Exhibits
- ☐ Witness list
- ☐ Motions in limine
- ☐ Legal Resources
- ☐ Jury instructions
- ☐ Proposed jury charge.
- ☐ Briefs on anticipated evidentiary issues.
- ☐ Exhibits
- ☐ Audio player
- ☐ Video player
- ☐ Interpreters
- ☐ Closing Materials

Main Checklist

Trial

Trial Preparation

Statements of Defendant

- ☐ Oral (p. 121)
- ☐ Written (p. 122)

Main Checklist

Trial

Trial Preparation

Statements of Defendant

Oral

- ☐ When
- ☐ To Whom
- ☐ Content
- ☐ Objections

Main Checklist

Trial

Trial Preparation

Statements of Defendant

Written

- ☐ When
- ☐ To Whom
- ☐ Content
- ☐ Objections

Main Checklist

Trial

Trial Preparation

State's Case

- ☐ Witnesses
- ☐ Witness (Testimony will cover – Cross Exam Issues)
- ☐ Closing Argument Guilt/Innocence Phase of Trial

Main Checklist

Trial

Trial Preparation

Punishment Phase Preparation

- ☐ Defense Character Witnesses (Witness – what will establish)
- ☐ Defense Expert Witnesses for Punishment (Witness – what will establish)
- ☐ Defense Documentary Evidence for Punishment (Document)
- ☐ Defense Photograph Evidence for Punishment
- ☐ Other Defense Evidence for Punishment
- ☐ Defense Issues to be covered in Closing Argument Punishment Phase
- ☐ State Issues which will be covered in Closing Argument Punishment Phase

Main Checklist

Trial

Trial Preparation

State's Evidence Punishment Phase

- ☐ Witnesses (Witness – Testimony)
- ☐ State's Documentary Evidence (Document – Objection)

Main Checklist

Trial

Trial Execution

- ☐ Preservation of error, generally (p. 127)
- ☐ Special Problems: (p. 128)
- ☐ Jury charge conference: (p. 132)
- ☐ Judgment issued.
- ☐ Sentencing (p. 133)
- ☐ Notice of Appeal

Main Checklist

Trial

Trial Execution

Preservation of error, generally

- ☐ Object every time: timely, specific ground, specific relief; get an express ruling
- ☐ State separate grounds separately (hearsay and confrontation; relevance and Rule 403; statutory, state, and federal constitutional)
- ☐ A motion in limine preserves nothing; object when the evidence is offered
- ☐ Running objection: request it and scope it (this witness, this subject, this exhibit); watch for the same evidence arriving elsewhere
- ☐ Excluded evidence: offer of proof, in question-and-answer form when credibility matters, before the charge is read
- ☐ Curable events: object, request an instruction to disregard, move for mistrial; get a ruling at each step
- ☐ Incurable events: the mistrial motion alone preserves the complaint, and review is limited to the mistrial denial
- ☐ Bench conferences and jury communications on the record; object to any failure to record
- ☐ Harm record: state the concrete prejudice and why a lesser remedy would not cure it
- ☐ See the Error Preservation section for the phase-by-phase pages

Main Checklist

Trial

Trial Execution

Special Problems:

- ☐ Noncitizen client
- ☐ Unexpected extraneous at trial
- ☐ Missing witness
- ☐ Batson error (get the strike sheets, comparative-juror facts, and rulings at all three steps into the record)
- ☐ Cop cross-exam (p. 129)

Main Checklist

Trial

Trial Execution

Special Problems:

Cop cross-exam

- ☐ Establish reliability of report (p. 130)

Main Checklist

Trial

Trial Execution

Special Problems:

Cop cross-exam

Establish reliability of report

☐ Trained to write

☐ Purpose:*

☐ Four principles:* (p. 131)

Main Checklist

Trial

Trial Execution

Special Problems:

Cop cross-exam

Establish reliability of report

Four principles:*

- ☐ Chronological (if the report says "A, then B," A happened before B)
- ☐ Complete (if it's not in the offense report, you didn't think it important)
- ☐ True (if it's in the offense report, it happened)
- ☐ Literal

Main Checklist

Trial

Trial Execution

Jury charge conference:

- ☐ Read every word.
- ☐ Compare to your pattern charge.
- ☐ Submit requested instructions in writing; get a ruling on each objection and request
- ☐ Unanimity: multiple incidents under one count, or disjunctive offenses? Request election and a unanimity instruction
- ☐ Contested facts about how evidence was obtained? Request the art. 38.23 instruction (requires affirmative evidence putting a material fact in genuine dispute); the statute reaches evidence obtained by an officer or other person, so private-actor violations count
- ☐ Lesser-included offenses: decide, and request on the record

Main Checklist

Trial

Trial Execution

Sentencing

- ☐ PSI reviewed with client; errors objected to on the record
- ☐ Punishment-evidence objections (notice, relevance, Rule 403; extraneous acts require proof beyond a reasonable doubt)
- ☐ Full range of punishment: object if the record suggests the court will not consider it
- ☐ Cumulation/stacking: object to an improper cumulation order
- ☐ Allocution; in murder cases, sudden passion at punishment?
- ☐ Fines, fees, costs, restitution: review the judgment; object to unsupported amounts
- ☐ Back-time credit verified

Main Checklist

Error Preservation

- ☐ Core Rules (every phase) (p. 135)
- ☐ Pretrial (p. 136)
- ☐ Jury Selection (p. 138)
- ☐ Evidence (p. 139)
- ☐ Trial Conduct (p. 141)
- ☐ Jury Charge (p. 142)
- ☐ Punishment and Post-Verdict (p. 143)

Main Checklist

Error Preservation

Core Rules (every phase)

☐ Object as soon as the ground appears; name the evidence, the legal ground, and the relief you want

☐ A general or "constitutional" objection preserves nothing

☐ State each ground separately: hearsay, confrontation, Rule 403, statutory, state constitution, federal constitution

☐ Get an express ruling; if the judge refuses to rule, object to the refusal on the record

☐ The appellate complaint must match the trial objection

☐ No magic words needed: plain English that tells the judge what you want and why you are entitled to it

☐ Needs no trial objection: sufficiency of the evidence; absolute requirements; waivable-only rights (object anyway when you can)

Main Checklist

Error Preservation

Pretrial

- ☐ Charging-instrument defects, form or substance: raise before trial or lose them (art. 1.14(b))
- ☐ Amendment of indictment: object before it is allowed; demand the 10 days (art. 28.10)
- ☐ Motion to suppress: plead every ground separately (Miranda; art. 38.22 warnings and recording; art. 38.21 voluntariness; art. 38.23; Fourth Amendment; art. I, sec. 9); establish standing on the record
- ☐ Suppression hearing: demand live testimony, an express ruling, and written findings when voluntariness is contested (art. 38.22, sec. 6)
- ☐ A definitive pretrial ruling carries forward; renew only if trial evidence materially changes the issue
- ☐ Speedy trial: assert it in the trial court and ask for a trial (a dismissal-only request weakens the claim); build the record on delay, reasons, assertion, and prejudice
- ☐ Limitations: forfeitable; move to dismiss before trial (art. 27.08)
- ☐ Competency: any credible suggestion triggers the informal-inquiry duty; put dates and observations on the record; if the court declines to inquire, object and make a bill
- ☐ Continuance: written and sworn, always; an unsworn oral motion preserves nothing beyond a separately pleaded constitutional claim
- ☐ Severance, misjoinder, election: move pretrial when the defect shows on the face of the charge; renew the election demand when the State rests
- ☐ Double jeopardy after mistrial: get the full mistrial record (who requested it, consent, manifest-necessity findings); raise by pretrial habeas before retrial

☐ Bail denial under art. I, sec. 11-d: demand the hearing and counsel; make the State elect and prove its theory; insist on written findings

☐ Art. 28.01 pretrial setting: calendar the seven-day filing cutoff

Main Checklist

Error Preservation

Jury Selection

- ☐ Challenge to the array: written, supported by affidavit, filed before voir dire begins
- ☐ Jury shuffle: demand it before voir dire begins
- ☐ Commitment questions: object by name; when your own proper questions are cut off, proffer the exact questions on the record
- ☐ Denied defense challenge for cause, all six steps before the jury is sworn: (1) clear and specific challenge; (2) peremptory used on that veniremember; (3) all peremptories exhausted; (4) additional strikes requested; (5) specific objectionable juror identified who will sit; (6) statement that the extra strike would have been used on that juror
- ☐ Granted State challenge for cause: object specifically and rehabilitate on the record; the appellate court reads the answers, and your characterization of them is what the record lacks if you stay silent
- ☐ Batson: raise before the jury is sworn and the panel discharged; get rulings at all three steps; strike sheets, questionnaires, and comparative-juror facts into the record

Main Checklist

Error Preservation

Evidence

- ☐ Timely and specific, every time; move to strike when the answer outruns the objection
- ☐ A motion in limine preserves nothing; object when the evidence is offered
- ☐ Running objection: request it and scope it (this witness, this subject, this exhibit); watch for the same evidence from another door
- ☐ Excluded evidence: offer of proof showing substance and admissibility, before the charge is read; question-and-answer form when credibility matters
- ☐ Excluding your constitutional defense evidence? Say the Constitution requires admission; the evidentiary argument alone does not preserve that claim
- ☐ Conditionally admitted evidence: calendar the missing link; move to strike when the promised connection never comes
- ☐ Rule 403 is a separate objection from relevance; request the balancing on the record
- ☐ Extraneous acts: demand notice (404(b), 609(f), 37.07, 38.37); object under 404(b) and 403 separately; force a genuine non-propensity purpose; request the limiting instruction at admission and again in the charge
- ☐ Rule 412: motion outside the jury, recorded in camera examination, sealed record, offer preserved
- ☐ Hearsay: name the statement, the declarant, and the truth it is offered to prove; count the layers, and demand an exception for each
- ☐ Confrontation is a separate objection from hearsay; make both: the statement is testimonial, the declarant is absent, and there was no prior opportunity for cross

☐ Substitute analyst: identify each report and statement conveyed; establish whether the witness performed, observed, or merely reviewed the work

☐ Experts: request the Rule 705(b) hearing before the jury hears an opinion; attack qualification, reliability, and fit as three separate showings; full offer of proof for your excluded expert

☐ Electronic evidence: name the authentication gap (authorship, account access, alteration, chain of custody, system reliability)

Main Checklist

Error Preservation

Trial Conduct

- ☐ Restraints or jail clothing: object before the jury sees anything; describe on the record what was visible and for how long
- ☐ Courtroom closure: object at the moment of closure; identify who was excluded and from what proceeding; request findings and reasonable alternatives
- ☐ Interpreter: put the language problem on the record; the court must implement the right unless the client waives it
- ☐ Judicial comments on the weight of the evidence: object (art. 38.05), and get the comment itself into the record verbatim
- ☐ Defendant's presence: note any proceeding or jury communication conducted in the client's absence
- ☐ Improper argument: object every time; request an instruction to disregard; move for mistrial; a skipped step forfeits everything below it
- ☐ Incurable harm: the mistrial motion alone preserves the complaint, and review is limited to the mistrial denial
- ☐ Bench conferences and all proceedings recorded; object to any failure to record

Main Checklist

Error Preservation

Jury Charge

- ☐ Before the charge is read: dictate or file specific objections and submit requested instructions in writing; get a ruling on each
- ☐ Preserve both erroneous inclusions and omissions
- ☐ Unanimity: multiple incidents under one count, or disjunctive offenses? Request election and a unanimity instruction
- ☐ Contested facts about how evidence was obtained? Request the art. 38.23 instruction (requires affirmative evidence putting a material fact in genuine dispute)
- ☐ Lesser-included offenses: decide, and request on the record
- ☐ Accomplice-witness corroboration instruction (art. 38.14): as a matter of law, or as a fact issue when participation is disputed
- ☐ The stakes: preserved charge error is reviewed for some harm; unpreserved charge error only for egregious harm
- ☐ Jury notes, the court's proposed answers, objections, and rulings all on the record; readback limited to the disputed portion

Main Checklist

Error Preservation

Punishment and Post-Verdict

- ☐ Full range of punishment: object if the record suggests the court will not consider it, and make the record even though the claim survives without objection
- ☐ Cumulation and stacking: object to an improper order; the claim is reviewable on direct appeal but unavailable later on habeas
- ☐ Punishment-phase extraneous acts: require proof beyond a reasonable doubt and the instruction
- ☐ PSI errors: object on the record
- ☐ Costs and fines: review the judgment; when the challenge needs facts outside the record, present them by formal bill of exception
- ☐ Motion for New Trial: file within 30 days; present within 10 days of filing; ruled within 75 days or overruled by operation of law; support outside-record grounds with affidavits and request a hearing
- ☐ Juror testimony attacking the verdict: limited to outside influence and racial animus; develop the proof through a non-juror where possible

Main Checklist

Appeal

- ☐ Deadlines run from sentencing in open court; calendar them the same day
- ☐ Motion for New Trial: file within 30 days; present it to the court within 10 days of filing; it is overruled by operation of law if not ruled on within 75 days
- ☐ Notice of Appeal: 30 days (90 days with a timely Motion for New Trial)
- ☐ Certification of right to appeal signed, and accurate?
- ☐ Trial court's permission needed (plea-bargained case)?
- ☐ Bail pending appeal?
- ☐ Designate the clerk's and reporter's records (include voir dire, bench conferences, exhibits)
- ☐ Handoff memo to appellate counsel: preserved issues, off-record events, jury notes

Main Checklist

Close file

- ☐ Withdraw
- ☐ Send closing letter.
- ☐ Final invoice; trust-account reconciliation
- ☐ Return client documents; retain file per retention policy
- ☐ Calendar expunction/nondisclosure eligibility date and notify client
- ☐ File to storage

Main Checklist

Clear Client's record.

- ☐ Expunge record (p. 147)
- ☐ Petition for Nondisclosure (p. 148)
- ☐ Juvenile Sealing of Records (p. 150)

Main Checklist

Clear Client's record.

Expunge record

- ☐ Confirm eligibility under current ch. 55A (renumbered from ch. 55 by H.B. 4504, eff. Jan. 1, 2025; anything citing art. 55.01 cites a repealed chapter)
- ☐ Not yet eligible? Calendar the waiting-period or limitations date
- ☐ Identify agencies involved
- ☐ Look for other cases that can be expunged while you're doing one
- ☐ Get Client SSN, TDL, address at time of arrest, address now.
- ☐ Draft petition
- ☐ Petition to client for notarized signature
- ☐ File petition
- ☐ Draft order
- ☐ Order to respondents for signatures
- ☐ Signed order to court
- ☐ Final order to client
- ☐ Purge SSN, credit card numbers from file

Main Checklist

Clear Client's record.

Petition for Nondisclosure

- ☐ Map the client to the right path before assuming ineligibility (p. 149)
- ☐ Check disqualifying offenses (e.g., family violence, sex offenses, listed violent offenses) and disqualifying criminal history under the current statute
- ☐ Confirm the waiting period for the specific path
- ☐ Confirm the petition goes to the court that handled the case
- ☐ New offense during the case or waiting period (other than fine-only traffic)? Re-check eligibility

Main Checklist

Clear Client's record.

Petition for Nondisclosure

Map the client to the right path before assuming ineligibility

- ☐ Automatic nondisclosure (no petition) for certain first-offense misdemeanor deferred adjudications
- ☐ Deferred-adjudication petition (the traditional route)
- ☐ Conviction-based paths for certain misdemeanors
- ☐ DWI paths (completed sentence or deferred; restrictions, including accident and interlock conditions)
- ☐ Veterans treatment court and other specialty-court paths

Main Checklist

Clear Client's record.

Juvenile Sealing of Records

- ☐ File Folder created
- ☐ Enter Client Sealing of Records in Contacts (SOS and Outlook)
- ☐ Draft Motion to Seal Records/Order
- ☐ Contact Client – Need to Review Motion and Sign/ Notarize verification
- ☐ Client notification for signature
- ☐ Client coming to office to sign
- ☐ Client wants Motion mailed
- ☐ Draft form letter and mail Motion to Seal Records to Client
- ☐ Received Motion and Executed verification
- ☐ Make 3 Copies of Motion and Verification. (One for office, Original and Copy for Court)
- ☐ Court Process and follow up for hearing date:
- ☐ File Motion with court and receive court date for hearing
- ☐ Received Motion and Notice of Hearing from Attorney
- ☐ Make copies of Motion and Notice of Hearing for each Agency
- ☐ Calendar date of Hearing for Motion of Sealing
- ☐ Draft Notice of Hearing to each agency and enclose copy of file stamped Motion and Notice of Hearing.
- ☐ Send regular mail

- ☐ Hearing for Motion to Seal:
- ☐ Hearing date – Motion submitted to court
- ☐ Date to pick up Order
- ☐ Received final Motion and Order for Sealing – granted
- ☐ Attorney to bring back Original Certified Motion /orders (one for each agency, plus one for office and one for the client (Harris County))
- ☐ Make additional copies of Certified Motion and Order if needed for each Agency
- ☐ Draft form letter to each agency and to Client – Order granted
- ☐ Copy of Order with form letter mailed to Agencies, Certified Mail Return Receipt Requested (p. 152)
- ☐ All green cards signed and received in office
- ☐ Attached Green card to each matching agency and scan in computer.
- ☐ Close File
- ☐ Attorney signed off

Main Checklist

Clear Client's record.

Juvenile Sealing of Records

**Copy of Order with form letter mailed to Agencies, Certified Mail Return
Receipt Requested**

- ☐ Harris County DA* (p. 153)
- ☐ Harris County Juvenile Probation* (p. 154)
- ☐ Harris County District Clerk* (p. 155)
- ☐ Houston Police Department* (p. 156)
- ☐ Harris County Sheriff's Department* (p. 157)
- ☐ Harris County Constable Precinct __* (p. 158)
- ☐ Harris County Fire Marshal* (p. 159)
- ☐ Other Law Enforcement Agency __* (p. 160)
- ☐ School __* (p. 161)
- ☐ School District, _____ ISD* (p. 162)
- ☐ N.C.I.C./FBI* (p. 163)
- ☐ T.C.I.C.* (p. 164)
- ☐ Texas Department of Public Safety/Expungements* (p. 165)
- ☐ Texas Education Agency* (p. 166)

Main Checklist

Clear Client's record.

Juvenile Sealing of Records

Copy of Order with form letter mailed to Agencies, Certified Mail Return

Receipt Requested

Harris County DA*

☐ Sent: _____

☐ Received: _____

Main Checklist

Clear Client's record.

Juvenile Sealing of Records

Copy of Order with form letter mailed to Agencies, Certified Mail Return

Receipt Requested

Harris County Juvenile Probation*

☐ Sent: _____

☐ Received: _____

Main Checklist

Clear Client's record.

Juvenile Sealing of Records

Copy of Order with form letter mailed to Agencies, Certified Mail Return

Receipt Requested

Harris County District Clerk*

☐ Sent: _____

☐ Received: _____

Main Checklist

Clear Client's record.

Juvenile Sealing of Records

Copy of Order with form letter mailed to Agencies, Certified Mail Return

Receipt Requested

Houston Police Department*

☐ Sent: _____

☐ Received: _____

Main Checklist

Clear Client's record.

Juvenile Sealing of Records

Copy of Order with form letter mailed to Agencies, Certified Mail Return

Receipt Requested

Harris County Sheriff's Department*

☐ Sent: _____

☐ Received: _____

Main Checklist

Clear Client's record.

Juvenile Sealing of Records

Copy of Order with form letter mailed to Agencies, Certified Mail Return

Receipt Requested

Harris County Constable Precinct _ *

☐ Sent: _____

☐ Received: _____

Main Checklist

Clear Client's record.

Juvenile Sealing of Records

Copy of Order with form letter mailed to Agencies, Certified Mail Return

Receipt Requested

Harris County Fire Marshal*

☐ Sent: _____

☐ Received: _____

Main Checklist

Clear Client's record.

Juvenile Sealing of Records

Copy of Order with form letter mailed to Agencies, Certified Mail Return

Receipt Requested

Other Law Enforcement Agency _ *

☐ Sent: _____

☐ Received: _____

Main Checklist

Clear Client's record.

Juvenile Sealing of Records

Copy of Order with form letter mailed to Agencies, Certified Mail Return

Receipt Requested

School _*

☐ Sent: _____

☐ Received: _____

Main Checklist

Clear Client's record.

Juvenile Sealing of Records

Copy of Order with form letter mailed to Agencies, Certified Mail Return

Receipt Requested

School District, _____ ISD*

☐ Sent: _____

☐ Received: _____

Main Checklist

Clear Client's record.

Juvenile Sealing of Records

Copy of Order with form letter mailed to Agencies, Certified Mail Return

Receipt Requested

N.C.I.C./FBI*

☐ Sent: _____

☐ Received: _____

Main Checklist

Clear Client's record.

Juvenile Sealing of Records

Copy of Order with form letter mailed to Agencies, Certified Mail Return

Receipt Requested

T.C.I.C.*

☐ Sent: _____

☐ Received: _____

Main Checklist

Clear Client's record.

Juvenile Sealing of Records

Copy of Order with form letter mailed to Agencies, Certified Mail Return

Receipt Requested

Texas Department of Public Safety/Expungements*

☐ Sent: _____

☐ Received: _____

Main Checklist

Clear Client's record.

Juvenile Sealing of Records

Copy of Order with form letter mailed to Agencies, Certified Mail Return

Receipt Requested

Texas Education Agency*

☐ Sent: _____

☐ Received: _____

Main Checklist

Prepare for disaster.

- ☐ Find quiet moment
- ☐ Make/Pour/Order coffee/liquor
- ☐ Sip and clear mind
- ☐ Decide whom you can trust with this information
- ☐ Download forms and fill out (and make 2 copies) (p. 168)
- ☐ Make 2 lists and copies of all the following, electronic or hard copy (p. 169)
- ☐ Make or arrange for electronic copies via scan or upload or portable drive of all office files, including client contact info
- ☐ Locate in your mind coffee shops with wireless, FEDex branches, and public libraries so you will not be shut out of online access.
- ☐ Make 2 copies of the following keys and gather them (p. 170)
- ☐ Prepare list of instructions in event of injury/illness
- ☐ Call person you picked
- ☐ Bring them hard drives, passwords, keys, list, instructions etc. listed above
- ☐ Take second set of copies to your home and put it in safe place, such as a shoe box, labelled "In case I get hit by a big yellow bus".
- ☐ Relax, sip coffee/drink.

Main Checklist

Prepare for disaster.

Download forms and fill out (and make 2 copies)

- ☐ Power of Attorney (limited or durable)
- ☐ Health care Power of Attorney
- ☐ Will, if you prefer not to leave things to the State

Main Checklist

Prepare for disaster.

Make 2 lists and copies of all the following, electronic or hard copy

- ☐ Insurance policies with numbers [btw, consider disability and general umbrella insurance policies for disasters and illness/injury]
- ☐ Bank accounts, with acct numbers, including IOLTA
- ☐ Investment/IRA accounts
- ☐ Deeds and car titles
- ☐ Assets people may not know about [safes, safe deposit, envelopes of cash]
- ☐ Clients and status of accounts/cases and all passwords to your computers
- ☐ Office leases/contracts
- ☐ Credits cards/lines of credit

Main Checklist

Prepare for disaster.

Make 2 copies of the following keys and gather them

- ☐ office
- ☐ safe or locking file cabinet
- ☐ car
- ☐ safe deposit box
- ☐ home or apartment

Main Checklist

Offense-Specific Checklists

- ☐ DWI Cases (p. 172)

Main Checklist

Offense-Specific Checklists

DWI Cases

- ☐ DWI - Initial Client Meeting (p. 173)
- ☐ DWI - Pretrial Checklist (p. 182)
- ☐ DWI - ALR Hearing Checklist (p. 190)
- ☐ DWI - Occupational License Checklist (p. 192)
- ☐ DWI - Administrative License Suspension Form Checklist (p. 197)

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Initial Client Meeting

- ☐ Administrative Setup (p. 174)
- ☐ Driving Privileges Discussion (p. 175)
- ☐ About the Criminal Charge (p. 177)
- ☐ About The Individual (DWI-Specific) (p. 178)
- ☐ About the Arrest (DWI-Specific) (p. 179)
- ☐ Consequences of Arrest and/or Conviction (p.
- ☐ Petition for Occupational License Discussion (p. 181)

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Initial Client Meeting

Administrative Setup

- ☐ Client Information Sheet
- ☐ JIMS Information (or other system for out of county)
- ☐ Contract for Representation Executed
- ☐ File Folder created
- ☐ Initial Court Appearance Calendared
- ☐ Enter Client Information in Contacts (SOS and Outlook)
- ☐ Engagement Letter to Client (opening letter)
- ☐ Billing Information Entered

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Initial Client Meeting

Driving Privileges Discussion

- ☐ Did arresting officers take driver's license?
- ☐ If client still has license, make copy for file
- ☐ Explain importance of ALR hearing
- ☐ Explain ALR hearing is separate from criminal case (different court, different location)
- ☐ Advise client of 15-day deadline to request ALR hearing
- ☐ Explain that client should not attend ALR hearing (State could call as witness)
- ☐ Questions about their driving: (p. 176)
- ☐ Explain suspension periods (refer to TCDLA DWI Suspension Period cheat sheet no. 7)

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Initial Client Meeting

Driving Privileges Discussion

Questions about their driving:

- ☐ What type of license do they have?
- ☐ Does their job require them to drive?
- ☐ What happens if they are not allowed to drive?
- ☐ What are the necessary driving times needed for work and/or personal errands?
- ☐ Have their driving privileges ever been suspended?

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Initial Client Meeting

About the Criminal Charge

- ☐ Explain range of punishment client faces
- ☐ What is their anticipation of what can be accomplished through representation?
- ☐ Have they, or anyone, made any prior court appearances on this charge?
- ☐ When is the next scheduled appearance?
- ☐ Have they ever been convicted of driving while intoxicated?
- ☐ Do they have any prior convictions?
- ☐ Will the pending charge or conviction affect their job?
- ☐ Will the pending charge or conviction affect their ability to travel out of the country?
- ☐ Do they feel they were intoxicated?
- ☐ Were there any admissions to being intoxicated to any authority?
- ☐ Have they posted anything about the arrest on the internet (social media)?

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Initial Client Meeting

About The Individual (DWI-Specific)

- ☐ What are the drinking habits of the client?
- ☐ Was the client taking medication?
- ☐ Has the client had any prior injuries?
- ☐ Do they have any physical or mental disabilities?
- ☐ Are they under a doctor's care?
- ☐ What is their prior driving history?
- ☐ Do they use unlawful drugs?
- ☐ How much sleep had they had before arrest?
- ☐ Do they have any speech impediments?
- ☐ Have they ever been arrested for public intoxication?

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Initial Client Meeting

About the Arrest (DWI-Specific)

- ☐ What caused them to be arrested?
- ☐ Date and time of the arrest?
- ☐ Were they driving when they were arrested by the police officer?
- ☐ Where were they going when the arrest occurred?
- ☐ Where were they coming from?
- ☐ Who saw them driving?
- ☐ Where did the arrest occur?
- ☐ Were they involved in any accident?
- ☐ Were there any open containers of alcohol in the vehicle?
- ☐ Any closed containers of alcohol in the vehicle?
- ☐ Was anyone else with them when he/she was arrested?
- ☐ Did they make statements to the arresting officer?
- ☐ Did they perform any field sobriety tests?
- ☐ Did they provide a sample of blood, breath or urine to the arresting officers?
- ☐ How many police vehicles were on the scene of the arrest?
- ☐ Did the police take them to a video room?
- ☐ Was their vehicle towed to a storage yard or turned over to someone?

- ☐ Where were they drinking before arrest?
- ☐ What was the time of their last drink prior to the arrest?
- ☐ What time did they eat prior to arrest?
- ☐ What time did they wake up/get up from sleeping on the day of arrest?
- ☐ What time did they have first drink on the day of arrest?
- ☐ Had they had anything to drink on the previous day?
- ☐ When would they say was the last time they were intoxicated?
- ☐ How much alcohol did they consume on the day of arrest?
- ☐ Who were they drinking with?
- ☐ How did they pay for the alcohol?
- ☐ Do they have any receipts for the alcohol?
- ☐ Do they believe they have a problem with alcohol?
- ☐ What is the age, weight and height of the client?

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Initial Client Meeting

Petition for Occupational License Discussion

- ☐ Explain petition process
- ☐ Explain hearing may be in civil court (separate from criminal charges)

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Pretrial Checklist

- ☐ Information and Discovery (p. 183)
- ☐ Defense Motions Filed (p. 184)
- ☐ Blood-draw case? (p. 185)
- ☐ ALR Process (p. 186)
- ☐ Trial Prep (DWI-Specific) (p. 187)
- ☐ Pre-Trial Motions (DWI-Specific) (p. 188)
- ☐ Trial Motions
- ☐ Occupational License (p. 189)

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Pretrial Checklist

Information and Discovery

- ☐ Charging Instrument in File (information, complaint, or indictment)
- ☐ Notes or Offense Report obtained
- ☐ Received copies of all Video Tapes and Recordings (scene and video room)
- ☐ Discovery Motion filed

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Pretrial Checklist

Defense Motions Filed

- ☐ Request for State Experts
- ☐ Request 404 (b) Notice
- ☐ Request 37.07 Notice
- ☐ Request 609 (f) Notice
- ☐ Motion to Suppress, if any
- ☐ Copies of All Motions to Client

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Pretrial Checklist

Blood-draw case?

☐ Warrant or claimed exception? Litigate warrant defects and any warrantless-draw theory

☐ Request the full lab batch discovery (see crime-lab list in the general checklist)

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Pretrial Checklist

ALR Process

- ☐ ALR Hearing to be Requested- Refer to ALR Folder
- ☐ ALR Discovery
- ☐ ALR Continuance
- ☐ ALR Subpoena
- ☐ Order ALR record
- ☐ Order TCOLE records
- ☐ Order Personnel file

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Pretrial Checklist

Trial Prep (DWI-Specific)

- ☐ TCOLE Information on Law Enforcement Witnesses Requested/Received
- ☐ Request ALR Transcript for Impeachment – if necessary
- ☐ Scene Photos / Scene Visit / Google Earth Photo of scene
- ☐ Subpoena hostile witnesses, if any

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Pretrial Checklist

Pre-Trial Motions (DWI-Specific)

- ☐ Brady
- ☐ Motion for Discovery ____ Sub MDT/Disp
- ☐ Jury election
- ☐ Motion for Discovery Experts
- ☐ Motion to Suppress
- ☐ Notice letter
- ☐ Application for Community Supervision

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Pretrial Checklist

Occupational License

☐ Occupational License to be Filed- Refer to Occ. Lic. Folder

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - ALR Hearing Checklist

- ☐ If DWI, Draft Petition for ALR Hearing
- ☐ File ALR by deadline
- ☐ Calendar ALR for 10 days & 15 day deadline
- ☐ Calendar 3,5,7,10 & 15 Days Before ALR
- ☐ ALR Hearing Requested from DPS (within 15 days of notice of suspension)
- ☐ Letter to Client indicating Hearing Request- Send Letter to Client for Notice of ALR upon Receipt
- ☐ Received Hearing Notification Letter
- ☐ Calendared Hearing Date
- ☐ Letter to Client indicating Hearing Date
- ☐ Send subpoena to Austin/Houston 15 Days prior to ALR
- ☐ Once signed subpoena is returned, get served
- ☐ Requested Discovery for Hearing from DPS
- ☐ If DWI, request tape from agency
- ☐ Verify receipt of DWI tape back
- ☐ Received Discovery (DPS must provide 9 calendar days before hearing)
- ☐ Subpoenas Issued and Sent to DPS/SOAH (same day as issued)
- ☐ Subpoenas sent to Process Server

- ☐ Witness Fee Check sent to Process Server
- ☐ Subpoenas Received (5 calendar days before hearing)
- ☐ Subpoenas and Witness Fee Check filed with SOAH
- ☐ Executed Subpoenas Faxed to DPS (3 calendar days before hearing)
- ☐ Received Final Order from Court
- ☐ Letter to Client indicating result of hearing
- ☐ Request Transcript from ALR Hearing
- ☐ *Reset Request (5 calendar days) or Motion for Continuance (less than 5)

☐ *Request/Continuance filed by: Defense_____ State

☐ _____ due to _____

☐ *Party responsible for issuance of new
subpoenas:_____

☐ *New Hearing Date Received and Calendared

☐ *If Reset/Continuance, repeat steps as needed.

☐ NOTES_____

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Occupational License Checklist

- ☐ Ask client if they want OCL, if lost ALR?
- ☐ Draft Petition for OCL
- ☐ Contact Clerk about Additional Requirements at Filing (driving record, etc.)
- ☐ Contact Client Regarding Obtaining Occupational License and notify of following:
(p. 194)
- ☐ Need the following before applying for OCL: (p. 195)
- ☐ Client needs to provide in writing: (p. 196)
- ☐ Get SR-22 from Client
- ☐ Client Signature/Notarization on Petition
- ☐ File Petition for Occupational License with Clerk
- ☐ Send Waiver to DA upon Receipt of Cause # back from Clerk
- ☐ Schedule Hearing for OCL (If Applicable)
- ☐ Calendar Hearing Date
- ☐ Notify Client of Hearing Date
- ☐ Client must bring original SR-22 and any other requirements by the Court
- ☐ Pick up Order from Court
- ☐ Client must carry certified copy of Occupational License Order with them at all times (p.

☐ Client must pay reinstatement and occupational license fees and mail an original form SR-22 and certified copy of Petition and Order to DPS in order to get an Occupational License

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Occupational License Checklist

Contact Client Regarding Obtaining Occupational License and notify of following:

☐ Suspension of License, No driving (arrest), Length of Suspension, Reinstatement fees to DPS, Filing Fee, SALCE, any other Requirements of court, i.e. Interlock, etc.

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Occupational License Checklist

Need the following before applying for OCL:

- ☐ SR-22 Insurance
- ☐ Class Schedule (If Applicable)
- ☐ Work Schedule (If Applicable)
- ☐ Affidavit signed by Client

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Occupational License Checklist

Client needs to provide in writing:

- ☐ Hours needed to drive (12 in a day, 4 at a time, possible driving log)
- ☐ Counties needed to drive and copy of SR-22

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Administrative License Suspension Form Checklist

- ☐ DIC-23: OFFICER'S SWORN REPORT (p. 198)
- ☐ DIC-24: STATUTORY WARNING (p. 206)
- ☐ DIC-56: BREATH TEST TECHNICAL SUPERVISOR ("TS") AFFIDAVIT (p. 209)
- ☐ BREATH TEST SLIP – Tex. Admin. Code, Title 37, Chapter 17 (p. 211)
- ☐ DRIVER RECORD (p. 214)
- ☐ SUBPOENA when you can't win a paper case (p. 216)
- ☐ VIDEO – Officer must authenticate (p. 221)

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Administrative License Suspension Form Checklist

DIC-23: OFFICER'S SWORN REPORT

- ☐ Officer's signature officer that wrote the report
- ☐ Sworn? (p. 199)
- ☐ Box A checked? (p. 199)
- ☐ Box B checked? (p. 200)
- ☐ Certified? (p. 201)
- ☐ Defendant's name? (p. 202)
- ☐ Offense report or Probable Cause Affidavit offered without DIC-23? (p. 203)
- ☐ Results of Test in Section V? (p. 204)
- ☐ Sufficient facts for each element? (p. 205)

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Administrative License Suspension Form Checklist

DIC-23: OFFICER'S SWORN REPORT

Box A checked?

- ☐ Incorporate documents by reference properly identified w/ correct # of pages specified?
- ☐ Not sufficiently identified object – Vague

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Administrative License Suspension Form Checklist

DIC-23: OFFICER'S SWORN REPORT

Box B checked?

☐ Fill in the blanks object if additional documents offered

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Administrative License Suspension Form Checklist

DIC-23: OFFICER'S SWORN REPORT

Certified?

- ☐ DPS stamp & signature of deputy custodian of records
- ☐ Object – Hearsay: not certified public record

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Administrative License Suspension Form Checklist

DIC-23: OFFICER'S SWORN REPORT

Defendant's name?

☐ Object – Relevance: not connected to arrest of client

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Administrative License Suspension Form Checklist

DIC-23: OFFICER'S SWORN REPORT

Offense report or Probable Cause Affidavit offered without DIC-23?

☐ Object – not a form promulgated by DPS (Trans. Code 524.011d)

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Administrative License Suspension Form Checklist

DIC-23: OFFICER'S SWORN REPORT

Results of Test in Section V?

- ☐ Object – proper predicate has not been established

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Administrative License Suspension Form Checklist

DIC-23: OFFICER'S SWORN REPORT

Sufficient facts for each element?

- ☐ Reasonable suspicion or probable cause for stop (p.
- ☐ Nexus for officer to request SFSTs (p.
- ☐ Probable cause for arrest (p.

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Administrative License Suspension Form Checklist

DIC-24: STATUTORY WARNING

☐ Check for: (p. 207)

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Administrative License Suspension Form Checklist

DIC-24: STATUTORY WARNING

Check for:

- ☐ Information at top against driver's license
- ☐ Date of arrest against DIC-23, DIC-56 and breath test slip
- ☐ Time of arrest 15 minute observation (37 Tex. Admin. Code § 19.4) (p. 208)

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Administrative License Suspension Form Checklist

DIC-24: STATUTORY WARNING

Check for:

Time of arrest 15 minute observation (37 Tex. Admin. Code § 19.4)

☐ Object – breath test slip & DIC-56

☐ Ask judge to take judicial notice of pertinent section in Breath Alcohol Testing

Manual

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Administrative License Suspension Form Checklist

DIC-56: BREATH TEST TECHNICAL SUPERVISOR ("TS") AFFIDAVIT

- ☐ Check information against breath test slip (p. 210)
- ☐ TS's signature
- ☐ Notary stamp
- ☐ Signature of notary
- ☐ Date notarized
- ☐ Notary stamp expiration date

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Administrative License Suspension Form Checklist

DIC-56: BREATH TEST TECHNICAL SUPERVISOR ("TS") AFFIDAVIT

Check information against breath test slip

- ☐ Breath Test Officer's ("BTO") name
- ☐ Certificate number (as Intoxilyzer Operator)
- ☐ Location of Intoxilyzer & serial number
- ☐ Client's name and date of birth
- ☐ Date of test
- ☐ Both test results

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Administrative License Suspension Form Checklist

BREATH TEST SLIP – Tex. Admin. Code, Title 37, Chapter 17

- ☐ Valid test: (p. 212)
- ☐ Check entered information (p. 213)
- ☐ Reference sample too far off predicated reference
- ☐ Must be certified

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Administrative License Suspension Form Checklist

BREATH TEST SLIP – Tex. Admin. Code, Title 37, Chapter 17

Valid test:

- ☐ No "invalid" message
- ☐ Results clearly printed
- ☐ All air blanks 0.000
- ☐ Signature of BTO

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Administrative License Suspension Form Checklist

BREATH TEST SLIP – Tex. Admin. Code, Title 37, Chapter 17

Check entered information

- ☐ Name of client
- ☐ Date of birth
- ☐ Date of test
- ☐ Name of operator
- ☐ Certificate number
- ☐ Arresting agency

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Administrative License Suspension Form Checklist

DRIVER RECORD

☐ Must be certified

☐ Enhancements for prior conviction/ALR suspension w/in 10 years: (p. 215)

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Administrative License Suspension Form Checklist

DRIVER RECORD

Enhancements for prior conviction/ALR suspension w/in 10 years:

- ☐ Failure = 1 year suspension (Tex. Trans. Code §524.022)
- ☐ Refusal = 2 year (Tex. Trans. Code §724.035)

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Administrative License Suspension Form Checklist

SUBPOENA when you can't win a paper case

- ☐ Prepare subpoena (<http://www.soah.state.tx.us/>) (p. 217)
- ☐ Request must be made at least 5 days prior to hearing
- ☐ Fax to DPS on day issued (1 Tex. Admin. Code §159.103(f)(1))
- ☐ [Serve witness with subpoena \(p. 219\)](#)
- ☐ File signed return w/ \$10.00 witness fee check (plus mileage fee) to SOAH
- ☐ [Fax return to DPS \(p. 220\)](#)
- ☐ Witness fails to show after proper service = object to Hearsay when documents entered
- ☐ Ask for return of witness fee check

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Administrative License Suspension Form Checklist

SUBPOENA when you can't win a paper case

Prepare subpoena (<http://www.soah.state.tx.us/>)

- ☐ Stopping officer
- ☐ Arresting Officer
- ☐ BTO & Tech Supervisor (Tex. Trans. Code §524.039) (p. 218)

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Administrative License Suspension Form Checklist

SUBPOENA when you can't win a paper case

Prepare subpoena (<http://www.soah.state.tx.us/>)

BTO & Tech Supervisor (Tex. Trans. Code §524.039)

- ☐ Must show "good cause" file affidavit based on personal knowledge that establishes genuine issue of validity of results

- ☐ Requires witness' presence to resolve (1 Tex. Admin. Code §159.101)

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Administrative License Suspension Form Checklist

SUBPOENA when you can't win a paper case

Serve witness with subpoena

- ☐ Five calendar days before hearing (1 Tex. Admin. Code §159.103(f)(2))

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Administrative License Suspension Form Checklist

SUBPOENA when you can't win a paper case

Fax return to DPS

- ☐ No later than 3 calendar days prior to hearing (1 Tex. Admin. Code §159.103(f)(3))

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Administrative License Suspension Form Checklist

VIDEO – Officer must authenticate

- ☐ Play portion
- ☐ Ask if he: (p. 222)
- ☐ Enter into evidence
- ☐ Make judge watch in hearing room

Main Checklist

Offense-Specific Checklists

DWI Cases

DWI - Administrative License Suspension Form Checklist

VIDEO – Officer must authenticate

Ask if he:

- ☐ Recognizes people on video
- ☐ Can identify people
- ☐ Can verify this is the video he made on date of arrest